" about them. Again the treaty
" between both countries is com-
" plete and perfect, and if this be
" considered as authority I am sure
" there will be the fair inference
" about them."

On the same day the Chi-
nese officers sent another letter
which said that the prince Kong
together with two Ministers Pan
and Chin, attended on the Em-
peror at Nanyen and they, there-
fore, shall have held a conference
among themselves after the return
of the Emperor the 4th day of
the tenth moon, and could not
send the answer within five day.

On the 12th day of the
same month the high commission-
er Okubo sent the answer in wri-
ting accepting the post ponement of three days more.

Translation

Memorandum of the
principle of the course
of actions taken towards
the aboriginal territory
of Formosa.
(No 8).

On the sixteenth day of the
tenth month, the reply from the
Young-li-yamen, and the letter
from Wan-xiang, have been receiv-
ed, the summary of which are
as follows:

"Our laws and rules can
" not be exercised in one line
" over the Empire, the officers civil
" and military, can not be or-
" ganized or posted in every Fun
" and Ken, the education can
" not be diffused equally throughout
the

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" the Empire, and the people can
" not be brought to the same custome
" and manners, but all the such
" conditions shall be also general and
" usual with all countries in the World.
" You can such conditions serve to
" prove that the land of Formosa
" was not Within the Chinese Empire?
" Such conditions shall be no little
" the case With the dominions be-
" longing to very countries. Can
" your Excellency apply the Inter-
" national Law to all such cases
" on general? The words which are
" found in Various books, can have
" hardly the same use and con-
" tain the general and proper
" meaning, unless they were edited
" by same author, on same time
" and at same place. Will your
" Excellency, however, depend on the

" one or two of them and deny
" all the others as affording no evi-
" dence? While even the books of
" the taxes Which belong to the Depa-
" rtment Kosbu, are divided into
" numerous sorts, as the entire or
" partial exemptions or deminitions
" of the taxes are there; And also
" it was said on a precedent con-
" ference that the taxes on the For-
" mosan savages are collected by
" their chief and handed over to
" our officers. The such examples
" are much more in our Empire.
" Why can the foreigners Who do
" not know the particulars, say on
" his supposition that our words
" and facts are not in coincidence,
" As to the case of the American
" shipwrecked men, the American
" consul argued against the Words
" of

" of our local officer, that the Formosan savages belong not to the Chinese Empire, and be regarded " jurisdictly the land of the savages as belonged to the Empire and " then our government settled that case by taking measures for " giving the protection in such " cases on the future time. Besides " here is the other letter of thanks " from the consul on the above case. " should Your Excellency not have seen this letter? While Your " Excellency has seen only the first " one send to the American consul " by our local officer. This officer " had been punished for his of- " fence, after being examined by " the Prince Kon and other high " officials. Thus the case of the " American shipwrecked men had

" already all ended. You can the " word which was given to the con- " sul of the other country by the " office of our officer years ago, be " taken to the evidence that there is " contrary in our words at present. " When you says that although your " complain was made to Shin or Ken, " they did not attend on it, on what " month and year took it place? " To What Shin or Ken was it made? " What documents are for the evidence " of it? So, when you says that, " although the appeal was made to " the Yoong-li-yamen, it was not " attended by them, was the appeal " to the yamen made after your " complaint to Shin or Ken was " not attended on? If it were so, " Why did Mr. Soyeshima not expla- " in here circumstances at first

in

" in Peking? It is certainly disag-
" reeable for both countries to hear
" the word "incursion" to be dominion
" of the other country; Thus on en-
" tering to the conventions with Mr.
" Soyeshima, this was said, in order
" to avoid the disagreeableness as
" possiable, and our words during
" the present conferences are also
" used as carefully as at the first;
" Why would he not endurable com-
" is charged on mean only by
" doubting them. The reception by
" the Emperor of the Minister
" Yanaghihara, was delayed only
" in order that it should be al-
" lowed, after settling of the pri-
" sent question and reestablish-
" ing of the peaceable relation.
" But your excellency says that this
" has been our unfriendly treat-

" ment against your country; This
" is the reverting word staying us.
" Your letter says however that, if
" we will renew all the courses taken
" hitherto; there shall be a good
" arrangement convenient to both
" sides indeed, to maintain the
" peaceable relation between the two
" countries, and the main object on
" which the Prince Kong and the
" other high officers kept in mind
" ed from begin; Thus in the me-
" of every conferences they said that
" this question must be settled fea-
" cably. Since it is also to keep
" the peaceable relation to have
" said that we will not make
" further discussion.

The letter of the Tsung-li-
yamen which was received before
this day (the 2nd day of the same

" ground", says that "it was a scorn
" against our country, to demand
" the reception by the Emperor of
" his Minister, while the forces
" remained in the Formosan territo-
" ry". It is clearly seen from
this letter that the Young-li-yamen
have vitiated already at this time
the peaceable relation between
both countries. But they said
that it is resenting and trying
them, as above mentioned. How
are they so without reflection!
The letter from Wan-seang is
as follows: "If your Excellency will
" take an arrangement convenient
" to both countries, appoint a day
" to the meeting for it. So we
" shall visit to your residence to
" hold a conference there. If the
" present question could be success-

" fully settled, the documents hitherto
" interchanged, might be taken back
" to each other, so that no trace of the
" disagreeableness should be leaved."

The reply of the Ambassador
Okubo on the same day, is as
follows:

"If your yamen has an ar-
" rangement convenient to both coun-
" tries how much can it please me.
" I will attend on you at the one
" o'clock P. M. of 17th or 18th day,
" if it please you."

On the seventeenth day, a
letter was received from Yong-
Tung and other three men, say-
ing that they shall come to the
residence of the Ambassador Oku-
bo tomorrow. (18th day).

On the eighteenth day, Wan-
seang pretending that he is sick,
sent

sent a letter, the extract of which is as follows:

"I have found in your reply that, if the Yamen has an arrangement convenient to both countries, how much can it please me. But I fear that Your Excellency should incline to one side as before; if it shall remain so, the good arrangement shall be not produced; Not knot is there which shall be not loosed, if the two sides shall be yielding; On the other hand there must be a breaking off, if the two sides shall be pulled against each other. This is the fixed fact. For the conference of this day is very interesting for the two countries, thus I hope that your Excellency

should not fail in receiving my sincerness.

On the 16th day of the same month Jon-Jung and other three men, high officers of Tsung-li-yamen visited our ambassador, Were received by and discussed the affair with him and the minister Yamaghiwara, the conference Chinese officers said of the day is to discuss most important question of the two countries, China and Japan; and although it is decided here, all matter will be shown to the prince Kong and Wan-Seang; and the question as a satisfactory arrangement, again will be deliberated. We will discriminate your opinion, and if the arrangement not be considered as satisfactory to both sides but to one side, We must deliberate

the

matter with our colleagues. If your letter shows, that there is a satisfactory arrangement to be held by both sides as right; and if says the arrangement would be recognized by our government, then we desire to hear your opinion. Of late, when Wan seang sah the minister Yamaghiwara, the right was discussed only, and no satisfactory arrangement was deliberated; while he was brought to do a conference with you, and we also only discussed right with the Minister; the discussion, therefore, of the Minister with us in Young-ki-Yamen, will not be considered as the decision of the question, but was held with a friendly spirit from first to last. As the conference of

today we need not say our opinion, because, unlike to the former occasions you will declare your opinion of a satisfactory arrangement of the question and we will deliberate with you, after we should have heard your opinion. Our government neither have right to let your troops retire nor have authority to order this to the Minister Yamaghiwara; We only held it to be an unfriendly measure that your troops are stationed in our territory. We did not complain it as unreasonable, that your country punished the Formosan savages because we did consider that your country only avenged the Wrong done to her subjects not knowing, that the aboriginal Formosa is a dependency of our country but if you would have recog-

nized

reject so, you must have taken the proper measures for it, and we require that you would have not to acted as heretofore.

Whenever any country which concluded a treaty with ours has any question against our government, they will settle it according to the treaty, but as to the question of Formosa our government did not know what matter have happend and what wrongs have been done, it would perhaps be concerning to the Liu Kiuans and others, then it might not be unreasonable that our country pays the indemnity; but he can not answer and could not consider as obtaining a satisfactory arrangement for both sides, unless it should have been

investigated although we do not oppose to your opinion, but it sets an obstacle to the arrangement, that you urgies us to pay the indemnity at present we desire to investigate the region occupied by the Wild tribes in Formosa, and to restrain their wicked deeds in future; but we can not consent to pay the indemnity now because should bring a certain dishonour upon our government.

We consent that we will give the answer to your questions within two days; although he shall show his master to the prince Kong and Wan-soang.

The high commissioner and other said that we have read your reply on the past day and it was for the purpose to regard the inter-

national

national amity and to seek to
a mode of the convenant adjust-
ment for the both nations that
we on the point of departure offered
the letter by which, we are glad,
your Excellency proposed to come
to us. For the present meeting
is to decide the existance of the
international amity, it is on your
power that it will decided firmly
and unchanged. As for the said
convenient mode of the adjustment
of the both nations your govern-
ment would already have some
opinion which we beg now to hear.
The mutual convenients we said
is the benefit for the both nations
and your government would not
object it. Desiring your reply
we know your resolution evidently
must have changed you have

come but are you still of opinion
told to Nyanaghiwara the previous
day? The opinion was that if our
troops had evaguated, your govern-
ment will do good for future
which was recorded in your letter.
Is your opinion still so now?
This is no mutual convenience but
the partial convenience for your
government. If it is so we will
never accept it but if your reso-
lution has changed and other
means of the adjustment will be
adopted, your request for the eva-
guation of our troops is based
on the ground that place belongs
to your Empire and our refusal
of it is on other view. Our expe-
dition to the aboriginal Formosa is
for the purpose protecting our
people, civilizing the savages and
securing

securing the safety of future navigators. Thus our officers and soldiers suffering many privation and losing some lives and our government spending heavy expense without hesitation, endeavorably were to accomplish this purpose, and therefore it ought by no means to be abandoned. If our troops will be evaguated, the natives have an obligation which they must pay to us, or if your government will attempt to possess that place, your government in the same manner must have the obligation to be paid to us, namely beside the offering cost to celebrate the deceased, some milions spent for the erection of camp, the opening of road and the provision of the

troops because the aboriginal soil produces nothing to meet our wants, all must be repaid to us in the manner of your obligation. But your government will refuse to pay it, it is the inviolable right on our side that our government will attempt to accomplish the purpose with more vigour but not for a territorial gain."

"The discussion of the right to the aboriginal soil had ended previously and the circumstance of the murder already stated, will have rendered known by the past consultation the present meeting only is intended to consult a convenient mode of the adjustment and ought not to relate to other matter. The act of the expectation being righteous shall be appreciated not

"not only by the heaven, the earth
"and the gods but by all the
"nations and even your Excellency
"did not rebuke it. The murder of
"our people have been consulted al-
"ready to your government, and
"in the aboriginal Formosa the
"opening of battle was commenced
"by the natives which from our
"right in the present adjustment.
"But your saying that an indem-
"nity should not be paid but
"after the minute examination
"of its circumstance, you must
"have put no trust to our words.
"Before the last fife days the nego-
"tiation was ended and our re-
"turn home decided but the pre-
"sent consultation on the ground
"of an mutual convenience is
"something to change the measure

"and to regard the amity of the two
"nations. But now your saying
"the examination of the murder can-
"not almost be understood. The
"matter of the indemnity should be
"decided by the resolution of the four
"high commissioners, or his meeting
"also will be useless. Our resolution
"has limitted to this day, but obriged by
"Prince Kong and Wan seang's request
"19th and 20th next are appointed
"and you shall make an resolate
"answer without fail."

This time the high commis-
sioner incensed by the Chinese
vacilating and discourtesy manner,
resolated his return and caused
his follow to embark on the
Gembu maru and return home
with his report previously.

Before the time the Japanese
gosen

government by the desition of its
councils made the preparation of
the navy and army and Was
Waiting another report from the
high commissioner. Still con-
tinuely the Genba marn Was
ordered to be anchored at Jin-
Jsin to provide for any events
and arrived at there after ten
days.

Questions to Which replies are to
be made, in as brief delay as
possible by the Legal advisor
to the Department of Foreign
Affairs, for the information of
H. I. Ms government.

1

Can Mr. Bingham's letter to
general Legendre, copy of Which,
marked R, is annexed, be con-
strued into an order not to
proceed to Aboriginal Formosa?
and, if so, Was he justified in
issuing such an order before
Japan had placed herself in
a state of War With China,
and before he had ascertained
Whether general Legendre Was
enlisted

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